UMKC Impact & Translation Series

Understanding Public Disclosure and Its Impact on IP Protection

Helping you move your work beyond the university

Let's say you've made a breakthrough in your research - something innovative, potentially impactful. Your instinct might be to share it widely: present at a conference, post online, or publish in a journal.

That instinct is part of academic work. But if your goal is for that work to create impact beyond the university, timing matters.

Sharing too early or without the right protections in place can limit your ability to develop, protect, and ultimately move your work into real-world use. This is where understanding public disclosure becomes critical.

This whitepaper is designed to help UMKC researchers and graduate students understand what counts as public disclosure, how it affects your ability to protect intellectual property (IP), and what you can do to avoid unintended consequences—without compromising your academic goals.

UITS Whitepaper

This whitepaper is part of the **UMKC Impact & Translation Series (UITS)** - a set of short videos and supporting materials designed to help faculty think more clearly about how their work can move beyond the university and into real-world use.

The videos introduce core ideas. This document goes deeper on one of those ideas: understanding how disclosure affects your IP rights.

What Is Public Disclosure?

Public disclosure is any **non-confidential communication** of an idea, invention, or discovery to others. It doesn't have to be formal or even intentional. If the information is made available to people who are not under a duty of confidentiality, it likely qualifies as public disclosure.

Common Forms of Public Disclosure

- **Journal articles** or **conference papers** (including preprints)
- **Oral presentations** or **poster sessions**
- **Theses and dissertations** once available in UMKC libraries or online repositories
- **Social media posts** or content shared on **personal websites**
- **Product demos**, **showcases**, or **pitch competitions** open to the public
- **Conversations** with external collaborators if not under a non-disclosure agreement

Tip: If you're about to tell someone about your invention, ask yourself - "Do they have an obligation to keep this confidential?" If not, it's a public disclosure.

Why Does It Matter?

Public disclosure can dramatically affect your ability to secure patent protection. Patent law, especially outside the United States, places a high premium on **novelty**, which is lost once an invention becomes public.

Key Impacts on IP Protection

- **Loss of Novelty**: Once disclosed publicly, your invention is no longer considered "new" under patent law.
- **Grace Period in the U.S.**: The U.S. gives you **12 months** from the date of first public disclosure to file a patent application. Miss this window, and you lose your rights.
- **No Grace Period Internationally**: Most other countries such as those in Europe and Asia follow an absolute novelty rule. Even one public mention before filing can make your invention unpatentable.

Example: A UMKC grad student presented her novel sensor technology at a national conference. She hadn't yet filed a provisional patent. Six months later, her international patent application was rejected because the presentation counted as public disclosure.

How to Protect Your Work

Protecting your work is not about restricting dissemination. It is about sequencing your actions so that you can both share your research and preserve its potential for real-world use.

Here's how UMKC researchers can proactively manage disclosures:

1. **File a Provisional Patent First -** A provisional application is a low-cost way to establish an early filing date and protect your invention before you go public. It gives you 12 months to refine your invention and file a full (non-provisional) patent.
2. **Use Non-Disclosure Agreements (NDAs) -** Before speaking with potential partners, companies, or even external collaborators, use an NDA to ensure confidentiality. The Office of Commercialization can help you prepare one.
3. **Control the Content of Public Talks -** You don't have to avoid public speaking; just be strategic. Share general concepts or high-level benefits, but avoid diving into technical details or enabling someone to replicate your work.
4. **Request an Embargo on Your Thesis -** UMKC allows students to delay the public release of a thesis or dissertation. This gives you time to secure patent protection before your work becomes accessible through university repositories.
5. **Consult Early and Often -** Before submitting a manuscript, preparing a pitch deck, or sharing slides at a conference, check in with the UMKC Office of Technology Transfer. We're here to help you find the best path forward.

Public Disclosure vs. Confidential Communication

Understanding whether a particular activity constitutes a public disclosure can sometimes feel murky, especially when academic work often involves collaboration, presentations, and publication. The key distinction lies in who has access to the information and whether a confidentiality agreement is in place.

The table below offers a quick guide to help you determine which scenarios are considered public disclosures (and could jeopardize patent rights) versus those that remain confidential and safe from an intellectual property standpoint.

Scenario	Disclosure Type
Journal article published online	Public Disclosure
Internal group meeting at UMKC	Non-Disclosure
Presentation at a public conference	Public Disclosure
Email to a collaborator without **NDA**	Public Disclosure
Email to a collaborator with **NDA**	Non-Disclosure
Thesis available in UMKC's digital repository	Public Disclosure
Thesis under embargo	Non-Disclosure

What Should You Do?

If your work has the potential to create impact beyond the university, the goal is not to slow down your research - it is to make informed decisions that preserve your options. Use this as a brief path forward:

Guiding Question:

What impact could this create beyond the university, and what needs to be protected before I share it?

1. **Submit an Invention Disclosure** as early as possible: UMKC Invention Disclosure Form
2. **Plan your communications.** Before submitting, presenting, or posting, consider the IP consequences.
3. **Ask for guidance.** Our office is here to help you navigate the process and protect your innovation every step of the way.

Conclusion

Sharing your discoveries is an essential part of academic work. But if your goal is for that work to create impact beyond the university, how and when you share it matters.

Understanding public disclosure allows you to balance openness with protection. It helps ensure that your work can move forward - whether through partnerships, licensing, startups, or other pathways to real-world use.

This is not about limiting dissemination. It is about preserving the ability for your work to reach its full impact.

Resources & Contacts

UMKC Office of Commercialization

📍 Website: www.umkcinnovates.com/tech-commercialization
📧 Email: techcomm@umkc.edu
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UMKC Office of Technology Transfer

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